

GUIDE · MARRIAGE & TRUSTS

Individual vs. joint trusts: *a strategic choice.*

For married couples in a separate-property state like Florida, individual trusts almost always serve better than a single joint trust. The reasons are administrative, protective, and tax-driven.

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A joint trust can look simpler at the outset. In Florida — a separate-property state — separate trusts usually prove the wiser structure once you account for administration at the first death, creditor exposure, and the step-up in basis.

The case for separate trusts

Cleaner administration

- A clear line between each spouse's assets makes the deceased spouse's trust simpler to administer.
- No need to untangle which assets belonged to whom.
- A smoother transition for the surviving spouse and any successor trustees.

Stronger asset protection

- Each spouse's assets stay clearly separated from the other's.
- Protection from an individual spouse's creditors stays intact.
- Reduced exposure to shared liability.

Tax advantages

- A clearer determination of the step-up in basis at the first death.
- Easier implementation of credit-shelter and other tax strategies.
- Simpler gift-tax tracking between spouses.

Common challenges with joint trusts

Joint trusts can work well in community-property states. In a separate-property state they tend to introduce friction:

- Difficulty tracking each spouse's separate-property contributions.
- Potential gift-tax complications between spouses.
- Harder implementation of credit-shelter (bypass) planning.
- More complex administration at the first death.
- Possible weakening of creditor protection.

The Lifetime Protection Subtrust

Our trusts can include Lifetime Protection Subtrust provisions, which carry benefits forward to the next generation:

- Enhanced asset protection for beneficiaries.
- Protection from a beneficiary's creditors and divorce.
- Flexibility for future generations.

- Favorable treatment of inherited assets.
- Preservation of family wealth over time.

MAKING THE RIGHT CHOICE

Some couples will prefer to keep an existing joint trust, and that can be the right call. Understanding the trade-offs is what makes the choice an informed one. PEP can create new separate trusts, optimize an existing joint trust, or amend current arrangements to fit your goals.

WORK WITH US

Speak with Derek.

The conversation begins with a complimentary thirty-minute call.



Derek Carrillo, Esq.

Founder & Managing Attorney · Premier Estate Planning

Every plan at Premier Estate Planning is drafted by the attorney whose name is on the engagement letter. If you would like to discuss what an appropriate plan looks like for your family, reach out directly — there is no obligation, and most callers leave the conversation with a clearer sense of their next steps.

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STEP 01

Consultation

A complimentary thirty-minute call to understand your circumstances.

STEP 02

Flat fee in writing

We outline a path forward and quote one fixed fee — no surprises.

STEP 03

Plan in ~2 weeks

Drafting, review, and an in-office signing. You leave with a bound portfolio.

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